



POLICE DEPARTMENT

August 11, 2025

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In the Matter of the Charges and Specifications :

- against - :

Police Officer Sheldon Elliott :
Tax Registry No. 958550 :
23 Precinct :

Case No.
C-032155

Police Officer Matthew Crudele :
Tax Registry No. 968351 :
23 Precinct :

Case No.
C-032156

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB: Amanda Rodriguez & Roberto Tavel, Esqs.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondents: Michael Martinez, Esq.
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To:
HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. C-032155

1. Police Officer Sheldon Elliott, on or about June 17, 2023, at approximately 0130 hours, while assigned to the 23 Precinct and on duty, in the vicinity of 1741 Lexington Avenue in Manhattan, New York County, abused his authority as a member of the New York City Police Department, in that PO Elliot took law enforcement action in stopping Akbar Williams based upon Akbar Williams's actual or perceived race.

AG 304-17, Page 1, Paragraph 3

PROHIBITED CONDUCT

Disciplinary Case No. C-031256

1. Police Officer Matthew Crudele, on or about June 17, 2023, at approximately 0130 hours, while assigned to the 23 Precinct and on duty, in the vicinity of 1741 Lexington Avenue in Manhattan, New York County, abused his authority as a member of the New York City Police Department, in that PO Crudele took law enforcement action in stopping Akbar Williams based upon Akbar Williams's actual or perceived race.

AG 304-17, Page 1, Paragraph 3

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on July 9, 2025.

Respondents, through their counsel, entered pleas of Not Guilty to the charged misconduct. The Civilian Complainant Review Board (hereinafter the "CCRB") called Akbar Williams and Dr. Alix Winter as witnesses, and introduced into evidence Body-Worn Camera footage from Respondents Crudele and Elliott, as well as a third officer, Officer Maroldo (CCRB Exs. 1, 2, and 3, respectively). Respondents each testified on their own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find each Respondent Not Guilty.

ANALYSIS

Evidence

In the early morning hours of June 17, 2023, Respondents, who were assigned to the 23 Precinct's Neighborhood Safety Team ("NST"), responded to a ShotSpotter alert in the vicinity of 109th Street, between Third Avenue and Lexington Avenue, in New York County. Moments later, they stopped Akbar Williams, who is Black, in front of 1741 Lexington Avenue. There is no dispute that the stop occurred. At issue is whether the CCRB has met its burden of proving that the stop was motivated, even in part, by Mr. Williams's race.

The incident was captured by the Body-Worn Cameras ("BWC") of the officers, and there was testimony about what transpired from Mr. Williams and each Respondent. Although, as will be discussed below, the motivation of Respondents is a point of contention, there was essential agreement on most of the details of what occurred during the encounter. Both Mr. Williams and Respondents were detailed and logical in their testimony, and their accounts were essentially consistent with the BWC footage.

Akbar Williams, who has been employed for eight-and-one-half years with the New York City Health and Hospitals Corporation, testified that after parking his car, he was walking on 109th Street toward Lexington Avenue on his way home. He passed by Respondents, who he heard speaking with two individuals in front of a deli. A moment later, as he was walking, he glanced back and noticed that Respondents' unmarked police car was now driving close to him. Mr. Williams made a left onto Lexington Avenue and walked past his residence, intending to stop at a store. He crossed 108th Street but saw that the store was closed, so he turned around and started walking back home. According to Mr. Williams, there was no traffic as he crossed

108th Street at that time (0130 hours), and he denied that he had jaywalked in either direction.
(Tr. 24-27, 31-35)

Just as he was reaching his home on Lexington Avenue, Mr. Williams was stopped by Respondents. Mr. Williams testified that he asked Respondent Elliott why he was being stopped, and the officer told him it was for jaywalking. Respondent Elliot requested his identification, and Mr. Williams eventually told the officer his name, date of birth, and address. As Respondent Elliott was using his phone to check Mr. Williams's name for warrants, Mr. Williams repeatedly questioned the officers as to the real reason for the stop, asking whether they had something better to do than stopping him for jaywalking. After running Mr. Williams's name on his phone, Respondent Elliot stated that no photograph appeared, and told Mr. Williams he needed a picture ID, which he did not initially provide. (Tr. 26-29, 35-39)

According to Mr. Williams, he was detained at the scene for approximately 20 minutes, since Respondents did not have a summons form to issue to him. Eventually another unit arrived with the necessary form. Mr. Williams showed the responding sergeant his driver's license, and was issued the summons. Mr. Williams testified that at no point during the stop did Respondents ask him anything about a gunshot on 109th Street. (Tr. 29-30, 39-40)

Respondents both testified that they, and a third officer, were in uniform in an unmarked police vehicle at the time of the incident, which occurred at approximately 0130 hours. The officers, who were assigned to the NST, quickly responded to the ShotSpotter alert, which is a high priority job. Upon their arrival at 109th Street, the only individuals Respondents saw were two light-skinned Hispanic males sitting in front of a deli. Respondents activated their BWCs, approached the individuals, and asked if they had seen or heard any gunshots. The individuals confirmed that they had been sitting outside for awhile and stated that they did not see or hear

anything. Each Respondent acknowledged that they did not investigate the possibility that the two individuals possessed alcohol in open containers in public, even though they both had brown paper bags that typically are used to conceal such containers. The officers also testified that they did not notice whether there were other people inside the deli whom they could have questioned. Instead, Respondents turned their attention to Mr. Williams, who walked past them on 109th Street as they were speaking with the two individuals. (Tr. 91-95, 106-12, 117-20, 131-32, 138-41, 158-61, 164-68)

When Mr. Williams walked past them he did not look in the officers' direction nor did he make eye contact. Respondent Elliott testified that in his experience, which included two-and-one-half years with the Anti-Crime Unit before being assigned to the NST, when someone avoids eye contact in this manner, and only glances back after they are some distance away to see if they are being watched, it may signal that they are involved in some form of criminal activity. After making this observation, Respondent Elliot gestured with his hand to Respondent Crudele that they should return to their vehicle, which they did. Respondent Elliott, who is Black, stated to Respondent Crudele that if Mr. Williams jaywalked, they would stop him. Both Respondents testified that they were looking for a lawful basis to stop and interact with Mr. Williams, who was the only other individual they had observed in the vicinity of the ShotSpotter alert. (Tr. 96-97, 103, 112-17, 128-29, 141-44, 149, 162-63, 167-68, 174-77)

From their vehicle on the corner of 109th Street and Lexington Avenue, the officers observed Mr. Williams walking south toward 108th Street. Respondents each testified that they witnessed Mr. Williams walk across 108th Street going south, and that he then reversed direction and crossed 108th Street again heading back north. Although he was in the crosswalk when he crossed the street, he did so against the red hand signal in the pedestrian box at the crosswalk.

The officers promptly exited their vehicle and stopped Mr. Williams in front of 1741 Lexington Avenue. Respondent Elliott addressed Mr. Williams, asking him to provide identification.

When Mr. Williams questioned why he was being stopped, Respondents informed him it was for jaywalking. (Tr. 98-99, 120-22, 144-45, 169-73)

Mr. Williams told Respondent Elliott his name, date of birth, and address, and the officer ran a check of that information on his phone. The phone check did produce a match to the information provided by Mr. Williams, but it did not include a photograph, and so Respondent Elliott asked Mr. Williams for a photo ID in order to verify his information; Mr. Williams refused to hand over such identification. Respondents testified that since they did not have any summons forms in their possession, they had to wait for other members of their team to arrive with the appropriate forms. When the other unit arrived, Mr. Williams showed his photo ID to the responding sergeant, and Respondent Elliott prepared a written summons which he issued to Mr. Williams. Prior to this date, Respondent Crudele had never issued a summons for jaywalking, whereas Respondent Elliot stated he issued such summonses in the past, about once a month. Respondents testified that neither of them asked Mr. Williams anything directly about the gunshots. However, they noted that during their 20-minute interaction, they had an opportunity to speak with Mr. Williams and observe him, and according to their experience there was nothing that suggested he was involved in the ShotSpotter alert. They also each insisted that the stop had absolutely nothing to do with Mr. Williams's race. (Tr. 99-103, 123-24, 127, 145-49, 177-86)

The BWC footage is essentially consistent with the narratives provided by Mr. Williams and Respondents. In the footage, Respondents ask the two individuals, who appear to be male Hispanics, whether they had heard any gunshots. They answer that they had been sitting there

awhile, and had not seen or heard anything. As Respondents are speaking with the individuals, Mr. Williams, dressed in a blue hoodie and carrying a fanny pack, walks past them on 109th Street in the direction of Lexington Avenue. (CCRB Ex. 1 at 1:05-1:26; Ex. 2 at 1:03-1:28)

After observing Mr. Williams for several seconds as he continues walking down the street, Respondent Elliott signals with his hand to Respondent Crudele that they should wrap up their conversation with the two individuals and return to their vehicle. (CCRB Ex. 1 at 1:28-1:35) The BWC footage captures Respondent Elliott saying to Respondent Crudele, "If he gives us that J..." and Respondent Crudele responding, "Yeah." (CCRB Ex. 2 at 1:28-1:41) The officers drive slowly to the corner, and appear to be looking left down Lexington Avenue, in the direction that Mr. Williams is walking. Respondent Crudele can be heard saying that Mr. Williams just doubled back, and Respondent Elliott states he crossed against the red. The footage only captures the discussion between Respondents; there is no video of Mr. Williams as he crosses the street. (CCRB Ex. 1 at 3:22) The officers turn onto Lexington Avenue and quickly exit their vehicle, with the intention of stopping Mr. Williams for jaywalking.

The BWC footage then shows Respondents approach Mr. Williams, and Respondent Elliott requests his identification. Mr. Williams asks why he is being stopped, and Respondent Elliott tells him it is for jaywalking. After repeated requests, Mr. Williams verbally provides his name and date of birth to the officers. As Respondent Elliott is using his phone to verify the information provided, Mr. Williams persistently questions the officers as to the real reason they are stopping him. Mr. Williams appears to be genuinely incredulous that he is being stopped for jaywalking at that hour. He states that he works for the City, he knows what he is talking about. Mr. Williams also explains that he had just parked his car, and was walking home. He was intending to first stop at a store across 108th Street, but after seeing that the store was closed had

doubled back toward his home. Respondent Elliott pulls up Mr. Williams's information on his phone, but there is no photograph, so the officer asks Mr. Williams for a photo ID, which he initially does not provide. (CCRB Ex. 1 at 3:48-8:29; Ex. 2 at 3:47-9:12)

Approximately 12 minutes after the stop, other members of the NST arrive. One of them, Officer Maroldo, helps Respondent Elliott clarify what type of summons he needs, then hands him one to complete. (CCRB Ex. 3 at 4:21-5:50) Meanwhile, the responding sergeant speaks with Mr. Williams, and persuades him to show him his photo ID. Respondent Elliot hands Mr. Williams the summons, and the encounter ends. (CCRB Ex. 1 at 20:26-23:03; Ex. 2 at 26:12-26:31)

Dr. Alix Winter, the Chief Data Scientist in the Racial Profiling and Bias-Based Police Investigations Unit of the CCRB, testified as an expert in data analysis. She explained how in certain cases involving police encounters, she requests data from the NYPD related to the type of encounter in question, for the one-year period preceding the incident. She also reviews publicly available NYPD data, such as that which is provided on the NYC Open Data website. Dr. Winter reviews the data and determines whether it supports a conclusion that an officer engaged in racially-based law enforcement activity. She testified that there are times where she is unable to draw any conclusions from the data, such as when she is dealing with an insufficient sample size. (Tr. 48-50, 57-58, 73-74)

In this matter, Dr. Winter reviewed the stop report and summons data provided by the NYPD for the one year preceding this incident, which occurred on June 17, 2023. She also reviewed the summons data she obtained from the NYC Open Data website for the two years before this encounter. At trial, Dr. Winter testified regarding this data:

From her review of the NYC Open Data:

1. Dr. Winter noted that in the year prior to the formation of the NST on March 16, 2022, there were a total of 332 criminal summonses issued in the 23 Precinct, only one of which was for jaywalking (which was less than one percent of the total summonses issued).
2. In the 15-month period from March 16, 2022 through the incident date of June 17, 2023, a total of 963 criminal summonses were issued in the 23 Precinct, only 16 of which were for jaywalking (less than two percent).
3. Citywide, in the year preceding the formation of the NST, a total of 40,419 summonses were issued throughout all of NYC, only 59 of which were for jaywalking (less than one percent). Similarly, from March 16, 2022 through June 17, 2023, a total of 95,856 summonses were issued throughout all of NYC, only 432 of which were for jaywalking (less than one percent).

Based on this review, Dr. Winter concluded that the issuance of jaywalking summonses, both in the 23 Precinct and citywide, was “relatively rare.” (Tr. 67-71, 76-77)

From her review of the data provided by the NYPD:

1. Dr. Winter testified that in the one-year period preceding this incident, Respondent Elliott had prepared a total of four stop reports for self-initiated stops, while Respondent Crudele had prepared two. This sample size was too small for Dr. Winter to draw any conclusions as to whether there was a pattern in Respondents’ law enforcement activities.

2. From her review of the records, neither Respondent had completed any jaywalking summonses during the one year preceding this incident. (Tr. 71-72, 76)

Other than noting the scarcity of jaywalking summonses, Dr. Winter testified that due to the small sample size of enforcement data in this case, there was not enough information for her to offer an expert opinion as to whether race played a role in the stop of Mr. Williams. Dr. Winter could draw no conclusion as to whether there was a pattern of racial disparity in the enforcement actions of either officer in this case. (Tr. 62-64, 78)

Charges

Each Respondent faces only one charge, for stopping Mr. Williams based on his actual or perceived race. Section 304-17 of the Administrative Guide states, “When an officer’s decision to initiate enforcement action against a person is motivated even in part by a person’s actual or perceived race, color, ethnicity or national origin, that enforcement action violates Department policy unless the officer’s decision is based on a specific and reliable suspect description that includes not just race, age, and gender, but other identifying characteristics or information.” In order to prove this charge, the CCRB has the burden of establishing, by a preponderance of the credible evidence, that the race of Mr. Williams, a male Black, played a role in the decision by Respondents to stop him.

In attempting to meet that burden, the CCRB has not presented any *direct evidence* that race played a part in Respondents’ law enforcement actions in this case. Instead, the prosecution relies on circumstantial evidence in an effort to prove the charge. Indeed, discriminatory intent may be inferred from circumstantial evidence based on an assessment of the totality of the relevant circumstances. See Washington v. Davis, 426 U.S. 229, 242 (1976). Such an inference,

however, must be the only one that can fairly and reasonably be drawn from the facts. Toward that end, the CCRB has identified several examples of circumstantial evidence that courts have recognized as relevant in a “totality of the circumstances” analysis. These categories of evidence will be discussed below.

A. The sequence of events leading up to the law enforcement activities at issue

In assessing whether law enforcement activity was racially motivated, the events leading up to the officers’ actions are part of the totality of circumstances to be considered. Here, counsel for the CCRB emphasized that Respondents decided to observe Mr. Williams, a male Black, for a possible jaywalking violation *before* he had actually committed such an infraction. To their credit, though, Respondents conceded as much, readily acknowledging that they were hoping to stop Mr. Williams to further their ShotSpotter investigation. They credibly explained that they were investigating the high priority ShotSpotter alert, and Mr. Williams was one of only three individuals they observed in the vicinity. For that reason, after first speaking with the two individuals in front of the deli, Respondents decided to keep an eye on Mr. Williams, with the intention of stopping him if he jaywalked so that they could then interact with him as part of their investigation into the ShotSpotter alert.

Additionally, the CCRB argued that the stop of Mr. Williams, and subsequent summons, constituted selective enforcement since the officers did not similarly investigate the two Hispanic men for possibly possessing open containers of alcohol in public. However, Respondents credibly explained that the situation with the two individuals in front of the deli was different than with Mr. Williams: the two males were sitting in front of the deli, and Respondents merely walked up to them and asked some questions about whether they had heard gunshots without having to stop them. Mr. Williams, in contrast, was walking away from where the officers were

standing, and so they believed they needed to conduct some form of a stop in order to interact with him, since the ShotSpotter alert was the priority. It was for that purpose that they decided to observe Mr. Williams with the hope that they would catch him jaywalking, which would provide a lawful basis for stopping him. Although Mr. Williams denied that he crossed against the signal, I credit Respondents' testimony that rather than stop Mr. Williams initially, they waited until they did, in fact, observe him jaywalk, and it was only then that they initiated the stop. Under these specific circumstances, the stop of Mr. Williams, and the issuance of the summons, did not constitute selective enforcement.

As such, based on the credible evidence, I am not persuaded that the events preceding the encounter support a conclusion that race played a role in Respondents' decision to stop Mr. Williams.

B. Respondents' departure from their own and/or their fellow officers' customary practices during the incident in question

In certain situations, a police officer's departure from the Department's customary practices in a given situation could support an inference that the officer acted with racially discriminatory intent. Here, Dr. Winter testified that from her review of the NYPD's summons data, the issuance of jaywalking summonses were a relatively rare occurrence among members of the 23 Precinct. For instance, as discussed above, jaywalking summonses constituted less than two percent of the total summonses issued by the 23 Precinct in the 15 months preceding this incident. Also, Respondent Crudele testified that he had never issued a jaywalking summons prior to the date of the incident. Respondent Elliott, meanwhile, claimed that he had issued such summonses approximately once per month, though he, too, acknowledged he did not regularly

conduct jaywalking stops, and Dr. Winter testified that her review of the records did not indicate that Respondent Elliott had issued any jaywalking summonses in the year preceding the incident.

As such, I find that there was credible evidence that when Respondents stopped Mr. Williams and issued him a summons for jaywalking, it was likely a departure from the customary practices of their fellow officers at the time, as well as from their own practices. The significance of this departure will be discussed further in the “Conclusion” section below.

C. Respondents’ violation of law and/or NYPD policies and procedures during the incident

If an officer engages in enforcement action that is in violation of the law, such activity, depending on the circumstances, can be a factor in determining whether the officer acted with racial bias. In this case, the evidence established that following the ShotSpotter alert, Respondents witnessed Mr. Williams cross the street against the traffic signal. Based on their observations, the officers initiated a stop of Mr. Williams and issued him a summons for jaywalking. Although subsequent to this incident the law was changed so that jaywalking can no longer be used as a basis for stopping an individual, on the date in question jaywalking was a recognized offense, providing Respondents with a lawful basis for stopping Mr. Williams. As such, I find that at the time of the incident, Respondents did not violate the law, nor did they run afoul of NYPD policy.

D. The falsity of Respondents’ non-discriminatory explanations for their actions

The falsity of an officer’s race-neutral explanation for their actions can support an inference that the officer was trying to conceal a discriminatory motive. Here, counsel for the CCRB questioned the explanation provided by Respondents. Specifically, counsel noted that during the 20 minutes in which Mr. Williams was detained, neither Respondent questioned him

about the ShotSpotter alert. It was, indeed, surprising that the officers never actually asked Mr. Williams about a gunshot. They did, however, interact with Mr. Williams for several minutes, during which time they had an opportunity to observe his behavior, learn that Mr. Williams, who was employed with the City, had just parked his car and was walking to the store; when he realized the store was closed, he reversed course and was heading home when the Respondents stopped him outside his residence. Although they did not directly question Mr. Williams about the gunshot, from the totality of their interaction, and based on their experience as police officers, Respondents reasonably determined that Mr. Williams was not involved in the gunshot. As such, I am not persuaded by the evidence that Respondents provided a false explanation for their actions, in an attempt to conceal a discriminatory motive for stopping Mr. Williams.

E. Data showing a pattern of racial disparities in the officers' enforcement activity over time

Where there is data establishing a pattern of racial disparities in an officer's enforcement activity, such data could be an important factor to consider in assessing a claim of racial bias. Here, such proof would be relevant circumstantial evidence that Respondents acted with racial bias when they stopped Mr. Williams, a male Black, in this case. However, Dr. Winter, the CCRB's expert in data analysis, testified that there was an insufficient sample size for her to conclude there was a pattern of racial disparity in the enforcement actions of either Respondent. Indeed, as discussed above, other than noting the relative scarcity of jaywalking summonses, Dr. Winter testified that she could draw no conclusion as to whether either Respondent acted with discriminatory intent in this matter.

As such, on this record, the data does not establish a pattern of racial disparities in Respondents' enforcement actions over time.

F. Respondents' histories of prior biased acts or similar misconduct committed against persons from Mr. Williams's racial group

Proof of past discriminatory conduct by an officer could constitute relevant circumstantial evidence. Here, such proof would have been useful in assessing whether Respondents acted with racial bias toward Mr. Williams, a male Black, when they stopped him in this case. However, no evidence was presented that either Respondent had a history of prior racially biased acts or misconduct against Black individuals.

Conclusion

After reviewing the totality of the circumstances, I am not persuaded that race was a factor in Respondents' decision to stop Mr. Williams. Notably, there was no direct evidence of racial bias in this case. Additionally, based on this specific record, I find that there was insufficient circumstantial evidence for the CCRB to meet its burden.

As discussed above, the sequence of events leading up to the stop of Mr. Williams did not support an inference that race played a role in that stop, or that Respondents were engaged in selective enforcement against Mr. Williams based on his race. With their actions, Respondents did not violate the law or NYPD policies, nor did they provide false non-discriminatory explanations for their actions. The data, as testified to by Dr. Winter, did not establish a pattern of racial disparities in Respondents' enforcement activity over time. The record also was devoid of evidence of prior biased acts committed against Black individuals by Respondents.

Indeed, in assessing the totality of the circumstances here, the only evidence that could arguably support an inference of racial bias is that the issuance of the jaywalking summons in this case was a departure from customary practices. As previously noted, such summonses were

relatively scarce within the 23 Precinct, raising questions about Respondents' decision to stop Mr. Williams for jaywalking in this case. But even if the issuance of the summons here was a departure from the norm, the evidence did not prove that Mr. Williams was targeted because of his race, or that the decision to stop him and issue the summons was in any way race-based. Again, Respondents wanted to interact with Mr. Williams because he was one of only three individuals Respondents observed in the area of the ShotSpotter alert, and they already had spoken with the other two.

In the absence of such proof, this Court is not persuaded that race played any role in the officers' decision-making in this case. The record did not establish, by a preponderance of the credible evidence, that Respondents stopped Mr. Williams based, even in part, on his actual or perceived race. Accordingly, I find each Respondent Not Guilty.

Respectfully submitted,

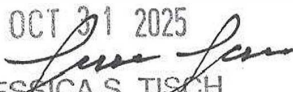


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APPROVED

OCT 31 2025



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